

24SMCV01214 24SMCV01214

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-10

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Case Number: 24SMCV01214 Hearing Date: September 10, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

10, 2026

CASE

NUMBER

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MATTER

Request

for Default Judgment

This case arises from a motor vehicle collision.

On March 14, 2024, Plaintiff Michelle M. May filed suit against Defendants Fieldworks, LLC, Dakota Taylor, and Does 1 to 10. Although the Complaint purports to allege three causes of action for (1) motor vehicle negligence, (2) general negligence, and (3) strict liability. No

cause of action pages are attached to the Complaint.

Taylor and Does 1 to 10 were voluntarily dismissed on August 27, 2025, leaving only Defendant Fieldworks, LLC ("Fieldworks" or "Defendant").

The proof of service indicates Defendant was personally served with a copy of the summons and complaint on December 2, 2024 and personally served with a copy of the statement of damages on August 25, 2025. Default was entered against Defendant on September 22, 2025.

Plaintiff now requests default judgment against Defendant in the amount of \$43,269.98, representing special damages in the amount of \$43,269.98.

Defendant has submitted a declaration, indicating that Plaintiff has refused to file an Amended Complaint in conformance with the Court's prior order denying Plaintiff's request for default judgment on the grounds that Plaintiff's operative complaint does not specify the damages sought and the Court cannot award damages in excess of those demanded in the Complaint. Defendant requests the Court sanction Plaintiff pursuant to Code of Civil Procedure Section 128.5 for unnecessarily delaying the proceedings and dismiss the action pursuant to Code of Civil Procedure section 583.410, subdivision (a) for delay in prosecution.

A. Default Judgment

As the Court previously explained, Plaintiff's Complaint does not specify the amount of damages sought. (See Compl.) In general, the Court cannot award damages that are in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

Plaintiff

also served a statement of damages on August 25, 2025. However, the Court finds that service of a Statement of Damages in lieu of alleging specific damages in the operative complaint is not apt. Generally, "A statement of damages cannot be relied on to establish a plaintiff's monetary damages on the defendant's

default, except in a personal injury or wrongful death case.” (Cal. Judges Benchbook, Civ. Proc. Before Trial § 16.16, p. 1924, citations omitted.)

In *Sporn v. Home Depot USA, Inc.*, the Court of Appeal determined:

Defendant also attacks the judgment under section 425.11, contending that plaintiff was required to serve it with a statement of damages and failed to do so. Section 425.11 applies to an action for personal injuries or wrongful death and was passed concurrently with the amendment to section 425.10 that prohibits stating the amount demanded in the complaint filed in such an action. Section 425.11 was enacted to satisfy the due process requirement that defendants be apprised of their exposure before a default may be taken. But here the complaint, which was not limited to personal injuries and did not claim wrongful death, expressly apprised defendant of the amount demanded. A statement of damages would have been superfluous and was not required under these circumstances.

(*Sporn*

v. Home Depot USA, Inc. (2005) 126 Cal.App.4th 1294, 1302 [Plaintiff's claims of negligence, gross negligence, fraudulent misrepresentation and fraud centered on the theft of his identity] [cleaned up].) Here, Plaintiff alleges only property damage, not personal injuries or wrongful death.

Therefore,

because the operative Complaint does not specify the amount of damages sought and this deficiency cannot be cured by serving a statement of damages, the Court cannot enter default judgment for any amount of damages on the current operative Complaint.

As

such, the Court cannot enter default judgment as requested on the current Complaint.

B. Defendant's Requests

“The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.”

(*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155

Cal.App.3d 381, 385. Further, the entry

of default “[c]uts off the defendant's right to file pleadings and motions (other

than a motion to set aside default under § 473), and it also cuts off the defendant's right to notices and the service of pleadings or papers.” (Bailey v. Citibank, N.A. (2021) 66 Cal.App.5th 335, 347, emphasis added.)

Here,

Defendant is currently in default and thus, it lacks standing to request sanctions. Further, Defendant has not demonstrated compliance with the safe harbor provision to request sanctions under Code of Civil Procedure section 128.5. (See Code Civ. Proc., § 128.5, subd. (f).) Even further, courts may not dismiss actions for delay in prosecution unless (1) service was not made within two years after the action commenced against the defendant [not applicable here]; (2) the action is not brought to trial within three years [not yet applicable, as the Complaint was filed March 14, 2024]; or (3) the action is not timely brought to trial after a new trial is granted [not applicable here]. (Code Civ. Proc., § 583.420, subd. (a).)

Accordingly,

the Court denies Defendant's requests for sanctions.

CONCLUSION

For the foregoing

reasons, Plaintiff's request for default judgment is denied without prejudice.

Further, the

Court sets an Order to Show Cause on April 7, 2027 at 8:30 AM in Department 207 regarding the dismissal of the action due to Plaintiff's delay in prosecution of the action and/or in bringing the action to trial within three years of commencing the action under Code of Civil Procedure sections 583.410 and 583.420, subdivision (a)(2)(A), and failure to request entry of default judgment under California Rules of Court, rule 3.110(h) [Failure to obtain default judgment]]. Any opposition to the Order to Show Cause shall be filed no later than 9 court days before the scheduled hearing.

The Court may

dismiss the action at the time of the Order to Show cause hearing if counsel or the parties fail to appear, or fail to provide good cause for the delay in

prosecution of the action; in bringing the action to trial, and/or in obtaining a default judgment.

The Clerk shall
provide notice of the Court's order.

DATED: September 10, 2026 /S/_____

MICHAEL
E. WHITAKER

JUDGE
OF THE SUPERIOR COURT